

		Commercial, Paul Fisher” as the dual agent as “NAI Capital Commercial”. Importantly, NAI provides no legal authority on point to show that a typo in its name rendered it unaware that it is the property entity in this case. (See e.g. <i>Sakaguchi v Sakaguchi</i> (2009) 173 Cal.App.4th 852, 861–862.) On Reply for the first time, NAI argues that there are actually two different entities and thus the naming issue is not a minor typo. NAI says that “NAI Capital, Inc. (that brokered the Lease originally) filed for bankruptcy in 2020. NAI Capital Commercial, Inc. purchased NAI Capital, Inc.’s assets free and clear out of bankruptcy via Bankruptcy Court order. That NAI Capital Commercial, Inc. brokered later transactions regarding property that was not subject to any lis pendens and had no disposition restriction on title...” (Reply, p. 3:6-16.) But these “facts” are not supported by any evidence (not even properly provided sworn testimony), and this argument is made for the first time on reply. Based on the judicially noticed documents and the opposition papers, the Court finds that service is proper. This is the only issue before the Court. The Motion is denied. NAI Capital Commercial Inc. shall give notice of this ruling.
10	Pelagio vs. County of Orange 2022-01292229	Motion for Summary Judgment and/or Adjudication Court will hear argument.
11	Salvador vs. City of Santa Ana 2025-01463617	Demurrer to Amended Complaint Court will hear argument Case Management Conference – remains on calendar
12	Takahashi vs. American	Motion to Compel Deposition (Oral or Written)

	Honda Motor Co., Inc.	
	2024-01384148	Continued
13	To vs. Dinh 2025-01517640	Demurrer to Cross-Complaint / Motion to Strike Portions Of Cross-Complaint The unopposed demurrer of cross-defendants Minh Cong To aka Minh Cong and Bau Tran to the cross-complaint of cross-complainants Elite Modern Builders, LLC and Duy Lap Le is sustained with 15 days leave to amend. Cross-Defendants' motion to strike portions of the cross-complaint is therefore moot. Service of the demurrer was timely and good. No opposition was filed. Failure to oppose the demurrer may be construed as having abandoned the claims. <i>See Herzberg v. County of Plumas</i> (2005) 133 Cal. App. 4th 1, 20 ("Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue."); <i>Quantum Cooking Concepts, Inc. v. LV Associates, Inc.</i> (2011) 197 Cal.App.4th 927, 934 (trial court was justified in denying post-trial motions for failure to provide adequate memorandum; "Rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide."). Additionally, the court may construe the absence of a memorandum as waiver of all grounds not supported. CRC 3.1113(a). Motion to Strike Given the recommendation to sustain the demurrer, the motion to strike is moot. Otherwise, the motion to strike may be granted with leave to amend on the same basis. Moving Party to give notice.